



SPONSOR: Rep. Bush & Rep. Gorman & Sen. Hoffner
Reps. Hensley, Heffernan, Yearick; Sen. Seigfried

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 72

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO THE SENIOR PROPERTY TAX CREDIT.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 1917, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1917. Collection and deposit of school taxes.

(c) (1) a. If authorized by majority vote of the whole school board of the local school district pursuant to § 6102(q) of Title 29, there shall be allowed a credit against taxation imposed pursuant to this chapter on the valuation of any qualified property. For purposes of this subsection, “qualified property” shall mean property owned and occupied as a dwelling by and as the principal residence of a qualified person. A “qualified person” is a person who, as of June 30 immediately prior to the beginning of the county fiscal year, is of the age of 65 or more and meets the following requirement:

1. For claimants establishing legal domicile in this State after December 31, 2012, but on or before December 31, 2017, only claimants who, as of June 30 immediately prior to the beginning of the county fiscal year, have been legally domiciled within the State for a period of at least 3 consecutive years are eligible to receive a credit.

2. For claimants establishing legal domicile in this State after December 31, 2017, only claimants who, as of June 30 immediately prior to the beginning of the county fiscal year, have been legally domiciled within the State for a period of at least 10 consecutive years are eligible to receive a credit. This paragraph shall only apply for the purposes of determining who is a qualified person for the years 2018 through 2025.

3. For all claimants after December 31, 2025, only claimants who, as of June 30 immediately prior to the beginning of the county fiscal year, have been legally domiciled within the State for a period of at least 3 consecutive years are eligible to receive a credit.

SYNOPSIS

This Act changes the residency requirement for seniors from 10 years to 3 years as it was prior to 2017.